



CHAPTER xxxv.

An Act to authorise the urban district council of New Mills to purchase the Ollerset Waterworks undertaking and such portion of the waterworks and plant of the Stockport Corporation as is within the district of the Council and to supply water throughout their district and to make further provision in regard to the gas undertaking of the Council and for other purposes.

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[22nd June 1906.]

WHEREAS the district of New Mills in the county of Derby is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the New Mills Urban District Council (hereinafter called "the Council"):

And whereas by an Act passed in the first year of the reign of King William IV. cap. 49 intituled "An Act for better supplying " with water the several hamlets of Beard Ollerset Thornset and " Whitle in the parish of Glossop in the county of Derby " (in this Act called "the Ollerset Water Act 1831 ") George William Newton of Ollerset his heirs or assigns were empowered to construct works to be called "the Ollerset Waterworks " and to supply the hamlets of Beard Ollerset Thornset and Whittle with water :

And whereas the said George William Newton did construct works and did supply the hamlets aforesaid with water :

And whereas the powers rights and privileges of the Ollerset Water Act 1831 are now vested in Francis John Sumner of

A.D. 1906. Eathorpe Park in the county of Warwick (hereinafter called "the undertaker") :

And whereas the whole of the hamlets of Beard Ollerset Thornset and Whittle are within the district of the Council :

And whereas it is expedient that provision be made for transferring to and vesting in the Council the Ollerset Waterworks and any other waterworks of the undertaker :

And whereas it is expedient that the agreement between the Council and the undertaker as set forth in the First Schedule to this Act should be confirmed :

And whereas the district of the Council consists of the parishes or townships of New Mills and Newtown and the parish of Newtown is within the limits of supply of the Stockport Corporation as defined in the Stockport Corporation Water Act 1899 and the corporation are now supplying the said parish of Newtown with water :

And whereas by section 60 of the Stockport Corporation Water Act 1899 (hereinafter called "the Act of 1899") it is provided as follows (namely) :—

Notwithstanding anything in this Act contained the urban district council for the district of New Mills (hereinafter in this section called "the district council") may at any time after the day of transfer give not less than six months' notice in writing to the corporation of their desire to purchase such portion of the waterworks and plant of the corporation as is contained within their district and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the waterworks and plant of the corporation (except the mains and pipes or other apparatus which shall be necessary for supplying with water any other part of the limits of the corporation for the supply of water) and to supply water within such district in which event it shall not be lawful for the corporation to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the corporation shall sell and the district council shall purchase the portion of the waterworks and plant of the corporation (except as aforesaid) within the district of the district council at such

price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament The corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act Provided that after the completion of such purchase all obligations on the part of the corporation to supply water within the district of the district council shall cease and determine:

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And whereas in accordance with the provisions of the Act of 1899 the Council on the twentieth day of December gave notice in writing to the corporation of their desire to purchase such portion of the waterworks and plant of the corporation as is contained within their district and it is expedient to empower the Council to purchase such portion of the waterworks and plant of the corporation as is contained within the district in accordance with the provisions of section 60 of the Act of 1899:

And whereas it is expedient that the water supply of the district should be under the control of the Council:

And whereas by an Act passed in the sixth year of the reign of King William IV. intituled "An Act for lighting with gas the towns of New Mills and Hayfield and the neighbourhoods thereof in the county of Derby" a company was incorporated and authorised to supply gas within the limits therein mentioned:

And whereas the Council during the year 1893 acquired by agreement under the provisions of the Public Health Acts the gasworks and gas undertaking of the company incorporated by the said last recited Act and have since been supplying gas within the district:

And whereas it is expedient that further powers should be conferred upon the Council in relation to their gasworks and gas undertaking:

And whereas it is expedient that the Council should be authorised to raise further money by rates and by borrowing for the purposes of this Act:

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And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the extension and improvement of the water undertaking - - - - -	7,500
For the extension and improvement of the gas undertaking - - - - -	5,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the eighth day of November one thousand nine hundred and five after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *High Peak Advertiser* a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate of the district:

And whereas such resolution was published twice in the said *High Peak Advertiser* and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the eighth day of January one thousand nine hundred and six being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the *Borough Funds Act 1903* have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

A.D. 1906.

PRELIMINARY.

1. This Act may be cited as the New Mills Urban District Council Act 1906. Short title.

2. This Act shall be divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Purchase of waterworks.

Part III.—Powers relating to waterworks.

Part IV.—As to supply of water.

Part V.—Gas lands.

Part VI.—As to supply of gas.

Part VII.—Financial provisions and miscellaneous.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Waterworks Clauses Acts 1847 and 1863 except (a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847 (b) sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts;

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words following were added at the end of the said section (that is to say):—

“Provided that every such contract entered into by the Council shall be alike in terms and amount under like circumstances to all consumers”; and

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have the same meanings unless there is something in the subject or context repugnant to such construction: Interpretation.

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Provided that in the Acts wholly or partially incorporated with this Act for the purposes of this Act the expressions "the undertakers" and "the company" mean the Council And in this Act unless the context otherwise requires—

- "The district" means the urban district of New Mills;
- "The Council" means the New Mills Urban District Council;
- "The district fund" and "the general district rate" mean respectively the district fund and general district rate of the district;
- "The undertaker" means Francis John Sumner of Eathorpe Park in the county of Warwick in whom the powers rights and privileges of the Ollerset Water Act 1831 are now vested;
- "The corporation" means the mayor aldermen and burgesses of the borough of Stockport;
- "The Ollerset Water Act 1831" means the Act of 1 William IV. cap. 49 intituled "An Act for better supplying with
" water the several hamlets of Beard Ollerset Thornset
" and Whitle in the parish of Glossop in the county
" of Derby";
- "The Act of 1899" means the Stockport Corporation Water Act 1899;
- "The scheduled agreement" means the agreement set forth in the First Schedule dated the eighth day of November 1905 and made between the Council and the undertaker;
- "The Ollerset undertaking" means and includes the water-works and all lands buildings plant apparatus and works connected therewith and all property real and personal of the undertaker mentioned in the scheduled agreement and all easements rights powers authorities and privileges enjoyed or exerciseable by the undertaker under the Ollerset Water Act 1831 or otherwise to be transferred under the scheduled agreement as such works lands buildings plant apparatus property easements rights powers authorities and privileges shall exist on the thirty-first day of March one thousand nine hundred and seven and also all contracts and benefits of contracts (such contracts being in subsistence on the thirty-first day of March one thousand nine hundred and seven) and all registers books accounts maps and documents relating to such undertaking;

“The water undertaking” means the water undertaking of the Council as acquired or extended under this Act or otherwise the water undertaking of the Council; A.D. 1906.

“The gas undertaking” means the present gas undertaking of the Council as extended under this Act or otherwise the gas undertaking of the Council;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council.

Unless the subject or context otherwise requires the words and expressions to which meanings are assigned by the Public Health Act 1875 have in this Act the same respective meanings.

5. The limits of this Act for the supply of water and gas hereinafter referred to as the limits of this Act shall be the district. Water and gas limits of Council.

PART II.

PURCHASE OF WATERWORKS.

6. The scheduled agreement is hereby confirmed and made binding upon the undertaker and the Council respectively. Scheduled agreement confirmed.

7. The sale of the Ollersët undertaking shall be carried into effect by a deed of conveyance duly stamped and truly stating the consideration. Transfer to be by deed.

On the execution of the said deed the Ollersët undertaking shall be as on and from the thirty-first day of March one thousand nine hundred and seven transferred to and vested in the Council subject and according to the provisions of this Act and thenceforth the Council in their own name and for their own benefit shall have and hold the said Ollersët undertaking.

8. From and after the completion of the purchase of the Ollersët undertaking the Ollersët Water Act 1831 shall be by virtue of this Act repealed. Repeal of Ollersët Water Act 1831.

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Pending actions &c. by or against undertaker.

9. If at the date of completion any action or proceeding or any cause of action or proceeding is pending or existing by or against or in favour of the undertaker relative to the Ollerset undertaking the same shall not abate or be discontinued or be in any wise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Council as and when it might have been continued prosecuted and enforced by or against or in favour of the undertaker if this Act had not been passed.

Contracts of undertaker to be binding on Council.

10. All agreements conveyances contracts deeds and other instruments entered into or made with or by the undertaker in relation to the Ollerset undertaking in force at the date of completion shall be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the undertaker the Council had been a party thereto.

As to mortgages by and debts of undertaker.

11. Upon payment by the Council of the purchase money payable under the scheduled agreement the undertaker shall with all practicable dispatch pay and discharge all mortgage and other debts and liabilities created owing or incurred by him in respect of the Ollerset undertaking prior to or at the date of the completion of the purchase of the Ollerset undertaking and the Council shall not be concerned to see to the application of the purchase money or be answerable to the mortgagees or creditors of the undertaker for the loss or misapplication thereof or otherwise in any respect whatsoever.

Purchase of waterworks of corporation in district.

12.—(1) The corporation shall sell under and in accordance with the provisions of the Lands Clauses Acts and the Council shall purchase such portion of the waterworks and plant of the corporation (except the mains and pipes or other apparatus which shall be necessary for supplying with water any other part of the limits of the corporation for the supply of water) as is situate within the district at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the Lands Clauses Acts and in construing the provisions of the Lands Clauses Acts for the purposes of this section "the special Act" means this Act "the promoters of the undertaking" means the Council and "lands" means such waterworks and plant as aforesaid.

(2) The Council shall serve notice to treat for the purchase of such waterworks and plant as aforesaid within six months after the passing of this Act.

(3) The purchase shall be completed and the price so agreed or fixed shall be paid on such day as may be agreed between the corporation and the Council or failing agreement on the first quarter-day next after the expiration of one month from the date of the award determining the price terms and conditions and upon payment by the Council of the price the waterworks and plant of the corporation within the district except as aforesaid shall be transferred to and vested in the Council by a deed of conveyance duly stamped and truly stating the consideration. A.D. 1906.

(4) As from the date of completion no part of the district shall be within the water limits of the corporation save so far as may be necessary to enable the corporation to construct lay and maintain mains and pipes and other works in and through the parish of Newtown for the supply of water to other parts of their water limits.

13. The corporation shall pay and discharge all outgoings and liabilities of every kind properly chargeable to revenue up to the date of completion and shall be entitled to all rates rents and other receipts on revenue account from the undertaking in the district up to that date and where necessary for the purpose of giving effect to this enactment such outgoings rates rents and receipts shall be apportioned between the corporation and the Council. Corporation to pay outgoings and to be entitled to all receipts till completion.

14. All books and documents which if the transfer of the Ollerset undertaking and of such waterworks and plant of the corporation had not been made would have been evidence in respect of any matter for or against the undertaker or the corporation as the case may be shall be admitted in evidence in respect of the same or the like matter for or against the Council. Books &c. to remain evidence.

PART III.

POWERS RELATING TO WATERWORKS.

15. The Council may maintain repair renew alter enlarge and extend the reservoirs mains pipes and other waterworks for the time being belonging to them by virtue of this Act or otherwise and may use and employ the same for the purpose of taking intercepting and impounding water and may take intercept and impound any water which might have been taken intercepted or impounded by the undertaker if this Act had not been passed and may sell and supply water in accordance with the provisions of this Act Provided nevertheless that the Council shall not supply Power to maintain existing waterworks and supply water.

A.D. 1906. — water within the parish of Newtown until they have completed the purchase under the section of this Act whereof the marginal note is "Purchase of waterworks of corporation in district."

Power to
make subsi-
diary works.

16. The Council in addition to the waterworks for the time being belonging to them by virtue of this Act may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices bye-washes shafts wells bores water-towers overflows waste-water channels gauges filter beds tanks banks walls bridges embankments approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to pur-
chase lands
by agree-
ment.

17. The Council may for the purposes of this Act purchase take and hold by agreement in addition to the lands which they may acquire from the undertaker any lands and hereditaments not exceeding in the whole twenty acres which the Council may from time to time require for the purposes of the water undertaking but the Council shall not create or permit the creation or continuance of any nuisance on any such lands and no buildings shall be erected on such lands except such as are required for or are connected with the purposes of their undertaking.

Power to
hold lands for
protection of
works.

18. The Council may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Reservations
of water
rights &c. on
sale.

19. The Council on selling any lands acquired by them in connection with their water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise

[6 Edw. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. A.D. 1906.

20. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands in the neighbourhood of the waterworks of the Council with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Council are for the time being authorised to divert collect or appropriate flowing to upon or from such lands directly or derivatively into the reservoirs or works of the Council.

Power to agree as to drainage of lands &c.

21. The Council may by agreement with the chancellor and council for the time being of the duchy of Lancaster purchase or acquire for the purposes of their water undertaking any right or interest of or affecting any property belonging to His Majesty His heirs or successors in right of the said duchy including any rights privileges and benefits similar to and to commence as from the expiration or sooner determination of those which were conferred on the undertaker by the indenture under the seal of the said duchy dated the twenty-first day of June 1888 and made between Her late Majesty Queen Victoria of the first part divers persons (being the lessee and sub-lessees of minerals belonging to the said duchy) of the second and third parts and the undertaker of the fourth part mentioned in the scheduled agreement upon such terms and conditions in all respects as may be mutually agreed and the Council may do all things necessary for fulfilling on their own part every such agreement.

Power to purchase rights from duchy of Lancaster for purposes of undertaking.

PART IV.

AS TO SUPPLY OF WATER.

22. The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum hereinafter specified (that is to say):—

Rates for supply of water for domestic purposes.

Where the rateable value of the premises so supplied with water does not amount to five pounds the sum of eight shillings and eightpence :

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—

Where such rateable value amounts to five pounds and does not amount to nine pounds the sum of thirteen shillings :

Where such rateable value amounts to nine pounds and does not amount to eleven pounds the sum of fifteen shillings and twopence :

Where such rateable value amounts to eleven pounds and does not amount to thirteen pounds the sum of seventeen shillings and fourpence :

Where such rateable value amounts to thirteen pounds and does not amount to sixteen pounds the sum of nineteen shillings and sixpence :

Where such rateable value amounts to sixteen pounds and does not amount to twenty pounds the sum of twenty-one shillings and eightpence :

Where such rateable value amounts to twenty pounds and over the sum of one shilling and one penny halfpenny in the pound per annum.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of this Act a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Rates payable by owners of small houses.

23. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the

[6 Edw. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1906.

24. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

25. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council. Notice of discontinuance.

26.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

27. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit Supply by measure.

A.D. 1906. — and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply to
houses partly
used for
trade &c.

28. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Price of
supply by
measure.

29. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per thousand gallons.

Power to sell
or let meters
&c.

30. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

Notice to
Council of
connecting or
disconnect-
ing meters.

31. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

32. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained:

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

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33. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

Power to supply materials.

34. The Council may on the application of the owner or occupier of any premises within the district abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Power to lay pipes in streets not dedicated to public use.

35. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such

Contracts for supplying water in bulk.

A.D. 1906. — period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of this Act.

Commence-
ment of this
Part of Act.

36. This Part of this Act shall come into force as to so much of the district as is within the water limits of the corporation on the completion of the purchase under the section of this Act whereof the marginal note is "Purchase of waterworks of corporation in district" and as to the remainder of the district on the completion of the purchase of the Ollerset undertaking.

PART V.

GAS LANDS.

Power to
erect and
maintain gas-
works &c.

37. Subject to the provisions of this Act the Council may in or upon the lands described in the Second Schedule to this Act or any part thereof erect construct maintain and as often as occasion may require enlarge alter improve extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes lamp-posts stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply and for the conversion or utilization and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and may make store and supply gas accordingly and the Council may manufacture sell provide and deal in coke coal-tar asphaltum ammoniacal liquor oil and all other refuse or residuary products arising remaining produced by or obtained from the manufacture of gas by them or the materials used therein.

Power to pur-
chase lands
by agree-
ment.

Gas not to
be manufac-
tured except
on lands
scheduled.

38. The Council may for the purposes of the gas under-
taking purchase take and hold (by agreement but not otherwise)
in addition to the lands described in the Second Schedule to
this Act any lands and hereditaments not exceeding in the whole
five acres which the Council may require for the purposes of the
gas undertaking but the Council shall not create or permit a
nuisance on any such lands and no lands shall be used by the
Council for the purpose of manufacturing gas or residual products
except the lands described in the Second Schedule to this Act.

PART VI.

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AS TO SUPPLY OF GAS.

39. The Council may supply gas for heating cooking motive power warming ventilating and other purposes and for the particular requirements of any trade industry manufacture or business and may do all things needful therefor on such terms and conditions in all respects as may be agreed between the Council and the person to whom such supply shall be given.

Supply of gas for other than lighting purposes.

40.—(1) The Council may purchase provide supply sell let for hire or otherwise deal in fix set up alter repair remove and refix but shall not manufacture gas meters and fittings gas engines stoves ranges pipes and other apparatus and appliances articles and things for lighting motive power the warming and ventilating of houses and buildings the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or such rents and charges and make such terms and conditions as may be agreed upon between the Council and the persons to or for whom the same are sold supplied let fixed set up altered repaired or removed.

Power to supply gas apparatus &c. for heating motive and other purposes and fittings not to be subject to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be provided that such fittings have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

41. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out or made but not dedicated to the public use within the limits of supply supply such premises with gas and may lay and repair take up alter relay and renew in across or along such street such pipes as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes in streets not dedicated to public use.

- A.D. 1906. **42.** The Council may lay down place repair alter remove and renew subways mains pipes culverts wires and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil and other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.
- Power to lay down pipes for ancillary purposes.
- Limiting price of gas. **43.** The price to be charged by the Council for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed four shillings and sixpence per thousand cubic feet.
- Testing place. **44.** For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Council on the lands described in the Second Schedule to this Act within three months after beginning to supply gas under the authority of this Act.
- Quality. **45.**—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by 14 sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.
- (2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be more suitable for the testing.
- (3) The Council shall within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

46.—(1) All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

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Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority. The Council shall afford to the examiner all reasonable facilities for making the test and two hours' previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

47. Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Council may cease to supply him with gas. The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctuators for gas engines.

48. If any person is required by the Council to give to them security for the payment of the price or rent of a meter the Council shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Council to pay interest on money deposited as security for meters.

49. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

No penalty in case of unavoidable cause.

50.—(1) The Council may charge for any gas supplied through a prepayment meter a not greater charge rate or rent

Charges for gas supplied by means of

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prepayment
meters.

than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of one shilling per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Council and the provisions of this Act applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Council may
contract with
local authority
&c. for
supply of gas
in bulk.

51. The Council may contract with any local authority company or persons beyond the Council's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Power to re-
fuse to sup-
ply persons
in debt for
other pro-
perty.

52. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council and has not paid all gas or meter rent due the Council may refuse to furnish to him a supply of gas until he pays the same.

Gas con-
sumers to
give notice
before re-
moving.

53. Twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to

the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent. A.D. 1906.

54. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council. Notice of the effect of this enactment shall be endorsed upon all demand notes for gas rent. Notice of discontinuance.

55. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

- (1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Council's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper circulating in the limits of supply and a copy thereof shall be kept exhibited in the office of the Council:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council. Any officer of the Council duly

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appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with:

- (6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any question as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Period of error in defective meters.

56. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharges to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Council.

Discounts.

57. The Council may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates in respect of gas supplied to large consumers or for motive power not exceeding in any case fifteen per centum. Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided further that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Dwelling-houses for persons in employ of Council.

58. The Council may purchase or take on lease and may erect fit up maintain and let upon the lands for the time being belonging to or leased by them for the purposes of their gas

[6 EDW. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

undertaking dwelling-houses for persons employed by them for A.D. 1906.
the purposes of their gas undertaking.

59. The Council may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention. Power to take licences for use of patents.

60. The Act of the 6th year of King George IV. entitled "An Act for lighting with gas the towns of New Mills and Hayfield and the neighbourhood thereof in the county of Derby" is hereby repealed. Repeal of New Mills and Hayfield Gas Act.

PART VII.

FINANCIAL PROVISIONS AND MISCELLANEOUS.

61.—(1) The Council may independently of any other borrowing power borrow at interest any sums not exceeding the sums following for the following purposes (that is to say):— Power to borrow.

- (A) For the purchase of the Ollerset undertaking and for defraying the costs charges and expenses incident to such purchase and to the transfer of the Ollerset undertaking to the Council (other than the costs of this Act) the sums requisite for those purposes:
- (B) For the purchase of the waterworks and plant of the Corporation in the district and for defraying the costs charges and expenses incident to such purchase and to the transfer of such waterworks and plant to the Council (other than the costs of this Act) the sums requisite for those purposes:
- (C) For defraying any purchase money payable under the section of this Act whereof the marginal note is "Power to purchase rights from duchy of Lancaster for purposes of undertaking" and for defraying the costs charges and expenses incident to such acquisition the sums requisite for those purposes:

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(D) For the extension and improvement of the water undertaking the sum of seven thousand five hundred pounds :

(E) For the extension and improvement of the gas undertaking the sum of five thousand pounds :

(F) For paying the costs and expenses of this Act the sum requisite for that purpose :

And with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or otherwise in relation to the water undertaking or the gas undertaking.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge as regards moneys borrowed for purposes (A) (B) (C) and (D) and moneys borrowed with the approval of the Local Government Board for the purposes of the water undertaking the revenue of the water undertaking and if they think fit as a collateral security the district fund and general district rate and as regards moneys borrowed for purposes (E) and moneys borrowed with the approval of the Local Government Board for the purposes of the gas undertaking the revenue of the gas undertaking and if they think fit as a collateral security the district fund and general district rate and as regards moneys borrowed for purpose (F) the district fund and general district rate.

Certain regulations of Public Health Act as to borrowing not to apply.

62. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act the several loans mentioned in the Third Schedule to this Act and representing the sums owing by the Council in respect of loans raised by them for the purposes of their existing gasworks as well as any sums which the Council may borrow under this Act shall not be reckoned.

Mode of raising money.

63. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others . Provided that the provisions contained in the section of this Act whereof the marginal note is

[6 Edw. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

"Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act. A.D. 1906.

64. Sections 236 to 239 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under this Act. Provisions of Public Health Act as to mortgages to apply.

65. The Council shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):— Periods for repayment of money borrowed.

As to moneys borrowed for the purposes (A) and (D) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within forty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (B) in the said section mentioned within thirty-five years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (C) in the said section mentioned within fifty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (E) in the said section mentioned within thirty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (F) in the said section mentioned within five years from the passing of this Act:

As to moneys borrowed with the sanction of the Local Government Board within such period not exceeding sixty years as that Board may in each case prescribe.

66. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and subject to the provisions of this Act the payment of the first instalment or the first payment to the sinking fund shall be made within one year if by yearly repayments or within six months if by half-yearly repayments from the date of borrowing the sum in respect of which the payment is made. Made of payment off of money borrowed.

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Sinking
fund,

67.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from

[6 EDW. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1906.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amount as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

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(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

68. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

69. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Power to re-
borrow.

70. The Council may except as hereinafter provided reborrow for the purpose of paying off any moneys borrowed or reborrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the reborrowing and which at the time of the repayment it was intended to reborrow. Provided that the Council shall not have power to reborrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys reborrowed shall be deemed to form the same loan as the money for the repayment of which the reborrowing has been made and shall be repaid within the prescribed period.

Return to
Local Go-
vernment
Board as to
repayment
of debt.

71.—(1) The clerk of the Council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund

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in pursuance of the provisions of this Act or in respect of any money raised thereunder or in regard to the gas undertaking of the Council under the Public Health Act 1875 or otherwise and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk of the Council showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk of the Council shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this or any other Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

72. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

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Sale of surplus lands.

73. The Council may sell lease and dispose of any lands acquired by or vested in them under this Act and not for the time being required for the purposes thereof.

Application of moneys arising from sale of lands.

74. The Council shall apply all moneys from time to time received by them in respect of any sales exchanges or disposition of lands under this Act or by way of fine or premium on any lease of such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council and such proceeds shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Application of water revenue.

75. The Council shall apply all money from time to time received by them in respect of the water undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the water undertaking :

Secondly In payment of the interest on moneys borrowed by the Council under this Act or otherwise for the purposes of the water undertaking :

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for the purposes of their water undertaking :

Fourthly In extending and improving the water undertaking :

Fifthly In providing a reserve fund if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one fifth of the aggregate capital expenditure for the time being upon the water undertaking which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Council and so that if that fund is at any time reduced it may thereafter be

again restored to the prescribed limit and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the full amount of one fifth of the said aggregate capital expenditure:

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The Council shall carry to the district fund so much of the balance remaining in any year of the income of the water undertaking (including the interest on the reserve fund when such fund amounts to one fifth of the said aggregate capital expenditure) as may in the opinion of the Council not be required for the purpose of carrying on the water undertaking and paying the current expenses connected therewith.

76. The Council shall apply all money received by them in respect of the gas undertaking except money borrowed and money received from the sale of surplus lands or other moneys received on capital account as follows (that is to say):—

Application
of revenue of
gas under-
taking.

First. In payment of the working and establishment expenses and cost of maintenance of the gas undertaking:

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the gas undertaking whether before or after the passing of this Act:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Council for the purposes of the gas undertaking:

Fourthly In extending improving and constructing (if the Council think fit) any works for the purposes of their gas undertaking:

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to one fifth of the aggregate capital expenditure for the time being upon the gas undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from their gas undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking and so that if that fund be at any time reduced it may

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thereafter be again restored to the prescribed limit and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the full amount of one fifth of the said aggregate capital expenditure :

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of their gas undertaking (including the interest on the reserve fund when such fund amounts to one fifth of the said aggregate capital expenditure) as may in the opinion of the Council not be required for carrying on improving or extending their gas undertaking and paying the current expenses connected therewith.

As to deficiency in receipts.

77. Any deficiency in the revenue of the Council on account of the water undertaking or on account of the gas undertaking as the case may be shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Judges not disqualified.

78. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate water rate rent or charge payable to the Council.

Recovery of penalties.

79. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Separate accounts to be kept.

80. The Council shall keep separate accounts of all sums received and payments made by them in respect of the water undertaking and the gas undertaking respectively and such accounts shall be made up and balanced annually as at the 31st day of March in each year.

Expenses of execution of Act.

81. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate.

Audit of accounts.

82. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

83.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

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Inquiries by
Local Go-
vernment
Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

84. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Council be paid to the treasurer of the Council and be by him carried to the credit of the water or gas undertaking as the case may be.

Application
of penalties.

85.—(1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

Authentica-
tion and ser-
vice of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

86. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the railway company") shall be in force and have effect:—

For protec-
tion of Lon-
don and
North West-
ern Railway
Company.

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to plans submitted to and in such manner as shall

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be previously reasonably approved by him and in all things by and at the expense of the Council who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any bridge or level crossing the Council shall make compensation in respect thereof to the said railway company the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :

Any dispute or difference which may arise between the railway company and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Council or either of them.

For protec-
tion of Great
Central and
Midland
Joint Com-
mittee.

87. The following provisions for the protection of the Great Central and Midland Joint Committee (hereinafter referred to as "the committee") shall be in force and have effect:—

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the committee or the bridges approaches viaducts stations or other works or any level crossings over the railways of the committee the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the committee and only according to plans submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Council who also shall restore and make good the roads over any such bridges level crossings and

approaches which the committee are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any bridge or level crossing the Council shall make compensation in respect thereof to the said committee the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided:

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Any dispute or difference which may arise between the committee and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the committee and the Council or either of them.

88. Nothing contained in this Act shall extend or operate to authorise the Council to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Saving rights
of Duchy of
Lancaster.

89. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of any of their rates or funds and moneys so paid may be recouped by and charged to the moneys to be borrowed under this Act.

Expenses of
Act.

A.D. 1906. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

ARTICLES OF AGREEMENT made the 8th day of November 1905 between FRANCIS JOHN SUMNER of Eathorpe Park in the county of Warwick Esquire (hereinafter called "the vendor") of the one part and the URBAN DISTRICT COUNCIL OF NEW MILLS in the county of Derby (hereinafter called "the Council") of the other part whereby it is mutually agreed between the vendor and the Council as follows (that is to say).:—

1. The vendor agrees to sell and the Council agree to purchase the water undertaking of the vendor at or for the price or sum of £11,000 subject to the reservations and provisions hereinafter mentioned.

2. The water undertaking of the vendor shall be deemed to comprise—

First The rights powers and privileges granted by an Act of Parliament passed in the first year of the reign of King William the Fourth intituled "An Act for better supplying with water " the several hamlets of Beard Ollerset Thornset and Whitle " in the parish of Glossop in the county of Derby " or otherwise vested in the vendor of searching for collecting diverting and raising the several springs of water on the land shown and coloured pink in the plan thereof marked Plan No. 1 and signed by the vendor and sealed by the Council into any reservoirs already or hereafter to be made for that purpose and of raising and conveying water from and out of the said reservoirs and distributing the same together with all the rights powers and privileges ancillary thereto granted by the said Act or otherwise vested in the vendor as the same are now subsisting in and capable of being exercised by the vendor as the proprietor of the waterworks authorised by the said Act and of the said land coloured pink but not further or otherwise :

Secondly The rights privileges and benefits included in and conferred by an agreement dated the twenty-first day of June 1888 and made between the Queen's most Excellent Majesty of the first part Shallcross Fitzherbert Widdrington of the second part Levi Joseph Hall Lucy Jane Hall Hannah Hall and Adelaide Ann Hall of the third part and the vendor of the

fourth part together with all other rights whether of easement or ownership which the vendor may have in respect of the tunnel and side drift referred to in the said agreement (whether situate on land coloured pink or on land coloured green on the said plan) but subject to the use and enjoyment by the vendor his heirs and assigns and lessees and others of the same tunnel and side drift or such part or parts thereof as he or they may be entitled to for the purpose of winning getting and carrying away mines and minerals from the adjacent lands of the vendor and all rights of the vendor in respect of waters now rising or flowing or hereafter to rise or flow in or through the said side drift or tunnel or any other side drift or tunnel hereafter driven therefrom or thereout and the rights (so far if at all as the same might be exercised by the vendor as owner of the lands irrespective of the said agreement) to lay down place form construct in the said tunnels and side drifts in such course and direction as may be reasonably approved by the vendor or his agent and to maintain enlarge renew and exclusively use such pipes as may be requisite for raising taking collecting diverting and appropriating such waters as aforesaid and to drive any other drift or drifts or tunnels in such course and direction as aforesaid in or from the side of the said tunnel for the purpose of obtaining a further supply of water therefrom:

Thirdly All that the right and liberty to search and sink for a spring commonly called or known as the "Senna Wall Spring" upon any portion of the phoside Moor part of the estate of the vendor known as the Park Hall Estate within fifty yards of the wall dividing the estate of the vendor known as the Ollerset Estate from the said Park Hall Estate and between the points marked "E" and "F" on the said Plan No. 1 and if and when the same or any other spring is there found to raise collect and divert the water therefrom into the reservoirs hereinafter mentioned by means of pipes to be laid in such course and direction and in such manner as may be agreed upon between the vendor and the Council:

Fourthly All those four reservoirs with land adjacent and subjacent thereto shown on the plan marked Plan No. 2 and signed by the vendor and sealed by the Council and thereon coloured blue and green (blue being the water and green the land) and respectively marked "A" "B" "C" and "D":

Fifthly All that reservoir or tank situate near to Morland House with land adjacent and subjacent thereto shown on the plan marked Plan No. 3 and signed by the vendor and sealed by the Council and thereon coloured blue and green (blue being the water and green the land) and marked "Morland Tank" together with the feeding pipes leading thereto the course and

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direction of which are shown on the said plan marked Plan No. 3 by yellow lines and the main water pipes leading therefrom belonging to the vendor the course and direction of which are shown on the said plan marked Plan No. 3 by red lines :

Sixthly All that piece of land shown on the said Plan No. 2 and therein coloured red containing 1,043 square yards or thereabouts with the turbine house turbine oil engine and other works thereon :

Seventhly All that weir across the River Goyt shown on the said Plan No. 2 and marked "Weir" :

Eighthly All that the full and free liberty power and authority subject to the exceptions and reservations hereinafter contained to and for the Council to use and enjoy in and through the tailrace shown on the said Plan No. 2 and marked "Tailrace" (part of which tailrace is within the said piece of land containing 1,043 square yards) for the purpose of working the turbine next hereinafter mentioned or any additional or substituted machinery all such of the waters of the stream called the River Goyt as can be diverted by the said weir and brought by or through the said tailrace subject to discharging the same waters into the said River Goyt from the said tailrace at the point marked G on the said Plan No. 2 without fouling the same waters and without wasting the same further than requisite for motive power Except and reserved to the vendor as to so much of the said tailrace as is not situate within the said piece of land containing 1,043 square yards (a) the right in such manner as he may think proper of arching covering or building over all or such portion of the said tailrace and of altering and increasing the strength and thickness of any arching or covering and of the walls of the same to any extent of thickness or depth so as such greater depth or thickness does not prejudice the ordinary flow of water through such tailrace (b) the right of erecting any building or erection or placing any bridge or making any road or executing any work whatsoever upon or over the surface of every arch or covering now being or hereafter to be above such portion of the said tailrace and the full and free right of passing thereon with or without horses cattle carts or carriages and (c) the full and free exercise of all such further and other rights of ownership as are not inconsistent with the free flow and user of the waters through the said tailrace The Council shall covenant to keep so much of the said tailrace as is without the land hereby agreed to be sold and the walls and the present coverings thereof in good and substantial repair and condition and effectually scoured and cleansed with a proviso that in case of default by the Council the vendor may do such repairs at the expense of the Council and recover the cost thereof from the Council as a

debt And the Council shall keep the said tailrace where the same is uncovered fenced on both sides thereof with posts and rails to the satisfaction of the vendor's agent: A.D. 1906.

Ninthly All and singular the turbine conduit the feeding pipes the mains branch mains and all other pipes cuts drains tunnels and conduits engines buildings machinery plant and apparatus belonging to the vendor as proprietor of the said water undertaking:

Tenthly All that the right privilege or easement of entering upon the land of the vendor shown on the said Plan No. 1 and thereon coloured pink if and when necessary with and without horses and carts laden or unladen for the purpose of laying pipes conduits or channels or other suitable works for the purpose of conducting any water there found to the said reservoirs or to the said tank such pipes to be laid in such course and direction and at such depth as may be reasonably approved by the vendor or his agent and also of examining keeping maintaining removing altering enlarging or replacing such of the said pipes cuts drains tunnels conduits and other aqueducts as are now lying in upon or under any land of the vendor shown on Plan No. 1 and thereon coloured pink as the same now are without any payment or acknowledgment to the vendor but subject to the payment by the Council of such fair and reasonable compensation as any lessees occupiers or tenants of such land may be entitled to And also the right and privilege or easement of entering upon so much and such part of the lands of the vendor shown on the said Plan No. 1 and thereon coloured green as may be necessary for the purpose of examining keeping maintaining removing altering enlarging or replacing the lines of pipes now existing and being in the said lands coloured green and lying between the terminus of the tunnel at Gow Hole at the point marked "H" on the said Plan No. 1 and the Turbine House at the point marked "J" on the same plan and also between the said Turbine House and the point marked "K" on the same plan Subject to the payment by the Council of such fair and reasonable compensation as any lessees occupiers or tenants of such land may be entitled to.

Eleventhly All and singular the rights privileges and benefits of the vendor under or by virtue of any other Act or Acts of Parliament (including sect. 37 of the Stockport Water Act 1901) or under or by virtue of any deed instrument or document of any description and especially any right or privilege or the benefit of any agreement now possessed or had by the vendor (subject to any acknowledgment now given or any payment now made by the vendor) in respect of examining keeping maintaining removing altering enlarging or replacing such of the said pipes as are lying in upon or under land not belonging to the vendor and particularly the land

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shown on the said Plan No. 2 and thereon scored with blue lines under which two pipes are laid in respect of which an acknowledgment of three shillings a year is paid by the vendor :

Twelfthly All that the benefit of any subsisting agreements entered into by the vendor as proprietor of the said waterworks for the supply of water or otherwise in relation thereto from such date as may be agreed for the completion of the said sale :

Thirteenthly All that the full and free right of road so far as the vendor can lawfully grant the same but only for the purposes of the waterworks and works connected therewith with carts and horses from Beard Terrace New Mills at the one end and from Gow Hole at the other end over and along the whole of the occupation road to Gow Hole and from such road along the line therefrom to the Turbine House before mentioned and also over and along the road known as "Knob Hall Road" the whole of which said roads are shown on the said Plan No. 2 and are thereon coloured yellow and marked "Right of Road" Also a like right of road over and along so much of the four roads or pieces of land leading to the said four reservoirs marked "A" "B" "C" and "D" respectively and which are coloured yellow upon the said Plan No. 2 and marked "Right of Road" as lies between the several points marked "X" and the several points marked "Z" respectively Also a like right of road over and along the land shown on the said Plan No. 3 and thereon coloured yellow and marked "Right of Road" and leading to the said Morland Tank The Council from time to time to the satisfaction of the vendor or his agent making good all damage to the said roads and the walls fences gates and gateposts along the same which shall actually be caused by the user of the same roads in the carriage of materials or otherwise for the purpose of constructing new reservoirs or of alterations to or the repair or improvement of the said reservoirs and tank or any new reservoirs or in the construction alteration repair or improvement of any works pipes plant or apparatus in connection therewith And in default of so doing within two calendar months after notice from the vendor or his agent the vendor to be at liberty to make good such damage at the expense of the Council and the cost thereof shall be a debt due from the Council to the vendor his heirs or assigns and recoverable accordingly.

3. The vendor will whenever required by the Council but within fifteen years after the passing of the Bill hereinafter mentioned into law without any payment or reward but at the cost and expense of the Council convey to the Council a suitable plot of land in a situation to be reasonably approved by the vendor two acres in extent for the construction of a reservoir and also give to the Council an option to purchase at any time within ten years after the passing of the Bill hereinafter mentioned into law such further land (not exceeding three acres) of the vendor for

the purpose of the said waterworks either adjoining and contiguous to the said two acres or otherwise as shall be required by the Council and reasonably approved by the vendor but situate at a height of at least 650 feet above Ordnance datum at a price proportionate to sixty pounds per statute acre but the Council purchasing in pursuance of this clause shall not be entitled to require production or abstract of any deed or document or title prior to the covenant to stand seized by John Sumner to the vendor dated the thirtieth day of June one thousand eight hundred and eighty-four and the stipulations as to title hereinafter contained with reference to the hereditaments hereby agreed to be sold shall in all other respects be applicable mutatis mutandis.

4. The vendor will also give to the Council the option to purchase at any time within ten years after the passing of the said Bill into law the plot of land of the vendor containing by admeasurement 4,346 square yards or thereabouts shown on the said Plan No. 2 and thereon hatched with a brown colour at the price of two hundred pounds subject to the like stipulations as to title as aforesaid.

5. The vendor will upon the expiration of the said agreement do all in his power to assist the Council in obtaining a renewal of all the water and other rights granted by the said agreement of the twenty-first day of June one thousand eight hundred and eighty-eight for a further term or in perpetuity and for this purpose agrees to grant for a further term but not exceeding thirty-one years (free of cost to the Council or others) the same privileges in over or under his land as were granted by him in one thousand eight hundred and eighty-eight when the same agreement was entered into but the vendor shall not be liable to pay the costs of such a grant but the same shall be borne by the Council except such part thereof as may be payable by the other parties to the agreement or grant.

6. The sale shall be made subject to the following reservations and provisions:—

- (1) The sale is subject so far as regards the lands hereby agreed to be sold to tithes and outgoings and to all incidents of tenure rights of way water lights drainage and other easements (if any) affecting the same and subject also to the existing tenancies and all allowances to and claims for compensation and other rights of the tenants. A legal apportionment of any tithe or other outgoing and of any rents shall if desired by the Council be effected by the vendor as far as circumstances will admit and at the expense in all respects of the Council. The sale is also subject so far as regards the lands coloured pink and green on Plan No. 1 to existing tenancies and to all grants and demises of easements rights and privileges of any description heretofore granted and demised by the vendor or his predecessors in title:

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- (2) The vendor reserves all necessary and proper powers for winning working getting and carrying away the mines beds and quarries of coal ironstone and other metals stone and minerals which are the property of the vendor within or under the lands coloured pink on the said Plan No. 1 whether by underground or surface workings Provided that if it appears to the Council that the working of any of the said mines or minerals or any part thereof is likely to damage the water undertaking the Council may give notice to the vendor and his lessees or grantees requiring him or them not to continue the working thereof or of such part thereof as the case may be stating its willingness to treat for the payment of compensation for such mines and minerals or the part thereof the working of which is required to be discontinued and thereupon such working shall be so discontinued and compensation shall be paid by the Council to the vendor his lessees and grantees as the case may require such amount in case of difference to be settled by arbitration :
- (3) The Council agree to fence within twelve calendar months from the completion of the sale each of the said reservoirs and tank to the reasonable satisfaction of the vendor's agent and thereafter to keep in repair the walls and fences surrounding the same reservoirs and tank :
- (4) The Council shall also at all times hereafter (subject as in the next succeeding sub-clause mentioned) provide free of charge a good and proper supply of water suitable for domestic and agricultural purposes to the farms and farm houses and cottages for labourers occupied therewith or immediately adjacent thereto which may hereafter be placed or erected upon the land of the vendor which are shown on the said Plan No. 1 and thereon coloured pink and green or which are already existing on such lands but the supply of water to which may at any time from any cause be discontinued (but so that the total number of such farms and farm houses to be so supplied shall not exceed at any one time thirty) and the total number of such cottages so to be supplied shall not exceed at any one time twelve and also to the farm lands farm buildings troughs or drinking places hereafter to be placed or erected on the said lands of the vendor coloured pink and green or which are already existing thereon but the supply of water to which may at any time from any cause be discontinued such supply hereby agreed to be provided to be so provided by means of the existing or such substituted or additional service pipes and such iron cisterns with ball taps as in all cases the vendor may reasonably require such service pipes and cisterns to be

provided repaired and maintained by the vendor at his own expense Save and except that when and as often as the Council shall desire to alter the line of pipes or cisterns or any of them or other the means by which the said supply of water is provided to the said farms farm houses cottages farm lands farm buildings and troughs or drinking places whether for the purpose of substituting another supply of water for the existing supply or for greater convenience in affording such supply or otherwise then and in every such case the Council shall provide construct fix maintain and repair such substituted pipes or cisterns or other means of supply at their own expense:

- (5) The vendor shall agree that he or any of his lessees or tenants for the time being of the farm houses farm buildings fields or other places mentioned in the last preceding sub-clause shall not under any circumstances whatever use the water supplied by the Council thereunder for irrigation for generating power or for any purposes other than domestic and agricultural purposes or other than those purposes for which water is now used on farms and shall not give sell or on any other terms otherwise supply such water to any other person or persons whomsoever and shall prevent water which has flowed through troughs used for the purpose of watering cattle from flowing into the reservoirs or tanks of the Council Provided further that if the vendor or any of his lessees or tenants shall fail to perform any of the stipulations of this sub-clause the Council may on notice to the vendor and such lessee or tenant and if within a reasonable time after such notice the said stipulations are not being duly performed enter upon the lands of the vendor whether or not the same are in the occupation of such lessee or tenant and make any alterations or do any acts which may be necessary to secure compliance with such stipulations but without prejudice to any other remedy which the Council may have for non-compliance with such stipulations:
- (6) Nothing contained in this agreement shall be construed to include any authority for the Council to enter take or damage in the exercise of any of the rights powers and privileges agreed to be sold or granted any house or other buildings or to enter into and use any private enclosed land of the vendor (other than the lands and hereditaments contained in the Schedule to the said Act first hereinbefore mentioned and now belonging to the vendor and those in this agreement specified as agreed to be sold and also other than and except such portions of the said private enclosed lands of the vendor being part of the said lands coloured pink as it may be necessary for the Council to enter and use for the purpose

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of collecting and conducting water to or for connecting the said reservoirs including the intended new reservoirs or waterworks referred to in clause 3 of this agreement and of examining repairing and replacing pipes drains and other aqueducts laid and made for the purpose of collecting and conducting water or connecting reservoirs as aforesaid) without the written consent of the vendor (or the owner and occupier for the time being thereof) or to enter any such enclosed land except upon the terms of making compensation for any damage thereby sustained by the vendor or other such owner and the tenant or occupier other than damage by the loss or lessening of water in the due exercise of the rights and privileges hereby agreed to be sold :

- (7) There shall be reserved to the vendor the right to grant or demise any part of the said land coloured pink on the said Plan No. 1 for building mining or any other like purpose and there shall also be reserved to the vendor the right to grant or demise any easements rights or privileges of any description whatever in over or upon the same lands or any part or parts thereof Provided that no such easements rights or privileges so to be granted or demised shall in any way prevent or interfere with the use as a gathering ground for waterworks of so much and such portion of the said lands coloured pink as are hatched with red lines on the said Plan No. 1 :
- (8) The Council shall if and when reasonably required by the vendor so to do divert and alter the course and direction of the main pipes and other pipes traversing the lands of the vendor shown and coloured pink and green in the Plan No. 1 or the pipes shown on Plan No. 3 or any substituted main pipes and other pipes or any part or parts thereof and substitute any other sufficient main pipes and other pipes or part or parts thereof respectively in lieu of the then present main pipes and other pipes or part or parts thereof or in substitution for the same respectively according to the extent of any diversion or alteration that may be from time to time made but the vendor shall pay all expenses incurred by the Council in and incidental to making any such diversion alteration or substitution and such expenses shall be recoverable by the Council as a debt :
- (9) The Council shall make good or compensate the vendor and any of his lessees or tenants for any damage to his or their property which may result from the bursting of any reservoirs tanks mains or pipes comprised in or laid and constructed pursuant to this agreement or from any flooding which may arise from such reservoirs tanks mains pipes or other works :

- (10) The vendor shall up to the time fixed for the completion of the purchase and afterwards until completion thereof (if such completion shall from any cause whatever be delayed) at his own expense maintain and keep his water undertaking in as good working order and condition as the same now is and shall carry on the water undertaking in the usual course of business making no substantial alteration without the consent of the Council.

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7. The vendor shall within thirty days after the passing of the Bill hereinafter referred to into law deliver to the Council or their solicitor an abstract of title to the lands hereby agreed to be sold and also to the lands in over or upon which the rights and privileges hereby agreed to be sold or granted are exerciseable or enjoyed such title to commence as to part of the hereditaments agreed to be sold or granted with an indenture of conveyance dated the tenth day of September one thousand eight hundred and seventy-five and made between Mortimer Ricardo of the first part Latymer George Crosse of the second part Rev. Newton John Spicer of the third part Thomas Neufville Crosse of the fourth part and Francis James Sumner of the fifth part and as to other parts with the respective conveyances or assignments thereof to the late Francis James Sumner The said deed of conveyance and respective conveyances or assignments deduce the title to the property by recital from a date or dates preceding the date or dates of such conveyances or assignments respectively and the Council shall be satisfied in all respects with such recitals of the prior title and shall not require any evidence or information as to anything recited disclosed or referred to in such conveyances or assignments or otherwise in relation to such prior title or make any requisition thereon And the Council shall within fifteen days after the delivery of such abstract or abstracts send in writing to the vendor or his solicitors their requisitions or objections (if any) in respect of such title and the abstract thereof If the vendor is unable or unwilling to comply with any of such requisitions either party shall be at liberty to rescind this agreement and thereupon this agreement (except clause 14) shall become of no effect.

8. The Council shall assume without inquiry or requisition that all duties which became payable on the death of Francis James Sumner have been paid.

9. The Council shall admit the identity of the property purchased with that comprised in the muniments upon the evidence afforded by inspection of the same and a statutory declaration to be made if required at the Council's expense that the property has been enjoyed according to the title shown for twenty years and upwards prior to the date hereof.

10. No error misstatement or mis-description shall annul the sale nor shall any compensation be allowed to either the vendor or the

A.D. 1906. Council in respect thereof The description hereinbefore contained is admitted by the Council to be correct as to quantity identity and all other matters which are discoverable by inspection.

11. As the muniments of title relate also to other property not included in this agreement they will be retained by the vendor who will if required give to the Council a statutory acknowledgment of the right to production and delivery of copies and undertaking for safe custody thereof to be prepared by and at the expense of the Council.

12. The purchase shall be completed and the purchase money shall be paid upon the thirty-first day of March one thousand nine hundred and seven or such other date as may be agreed between the Council and the vendor and on payment of the purchase money and other moneys agreed to be paid by the Council the vendor will execute a conveyance or assurance of the hereditaments agreed to be sold subject as aforesaid to be drawn by the Council or their solicitor and approved by the vendor or his solicitors and such conveyance or assurance shall contain full and proper clauses provisions and covenants framed so as to bind the vendor his representatives and assigns and the Council its successors and assigns respectively for duly effectuating the terms of this agreement (the form of such clauses provisions and covenants to be settled in case of dispute by a counsel appointed failing agreement by the Attorney-General) A duplicate of such conveyance executed by the Council shall be delivered to the vendor on completion On completion the Council shall be entitled to possession and enjoyment of the hereditaments agreed to be sold All outgoings shall be discharged by the vendor up to the day of completion such outgoings if necessary being apportioned for that purpose.

13. The Council shall pay to the vendor the sum of one hundred pounds towards the costs of his solicitors and surveyor.

14. In case the said sale shall not be carried through to completion for any cause other than through the default of the vendor the Council shall pay to the vendor's solicitors and surveyor all costs charges and expenses including counsel's fees and other payments as may be reasonably incurred in reference to the negotiations for the sale and the preparation and completion of this agreement and in reference to deducing the vendor's title and to the assurance of the hereditaments agreed to be sold or granted so far as the same may have been proceeded with but without prejudice to the vendor's right or claim to damages or any other remedy to which he may be entitled in respect of any breach of this agreement on the part of the Council.

15. The vendor shall on completion deliver to the Council all books and documents relating exclusively to the water undertaking and necessary for the proper conduct of the water undertaking.

[6 EDW. 7.] *New Mills Urban District Council Act, 1906.* [Ch. xxxv.]

16. The vendor shall after the passing of the Bill hereinafter mentioned into law give to the officers of the Council all necessary facilities for making themselves acquainted with the business of the water undertaking. A.D. 1906.

17. This agreement is subject to the approval of Parliament and to such alterations as Parliament may make therein and if a Bill confirming this agreement be not passed into law within the next succeeding session available for Private Bill legislation or at any time before the thirty-first day of December one thousand nine hundred and seven this agreement except clause 14 hereof shall have no force or effect. The Council shall make application for such Bill in such next session of Parliament. The vendor shall not oppose and if required by the Council shall at the expense of the Council (including the costs and expenses of his counsel solicitors and agents) support such part of any Bill which may be promoted by the Council as shall provide for the confirmation of this agreement:

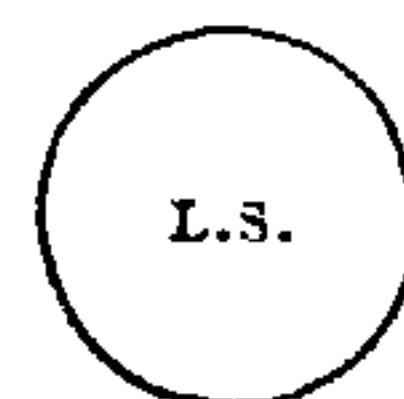
Provided that the vendor shall not be required to give any personal support or evidence and that the costs of his solicitors shall be defrayed by the Council on the scale as between solicitor and client.

18. If Parliament should make any material alteration in this agreement either party may withdraw therefrom and the question whether any alteration is material shall be referred in case of difference to a counsel agreed upon between the parties hereto or in default of such agreement to be appointed by the Attorney-General.

19. If any question shall arise under or in relation to this agreement or the carrying out thereof such question shall be referred to a single arbitrator and this shall be deemed to be a submission within the meaning of the Arbitration Act 1889.

In witness whereof the vendor has hereunto set his hand and seal and the Council have hereunto caused their common seal to be affixed the day and year first before written.

Signed sealed and delivered by the }
said Francis John Sumner in the } (Signed)
presence of } FRANCIS JOHN
SUMNER.



(Signed) THEO. WALTER ELLISON Solicitor
Glossop.

The common seal of the said New Mills Urban }
District Council was hereto affixed by order of }
the Council in the presence of }



(Signed) J. T. SCATTERGOOD Chairman.
(Signed) JOSEPH POLLITT Clerk.

A.D. 1906

SECOND SCHEDULE.

LANDS ON WHICH THE COUNCIL MAY ERECT AND MAINTAIN GASWORKS
AND MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE GAS.

All those plots pieces or parcels of land comprising in the whole 2 acres 3 roods and 31 poles or thereabouts belonging to and in the occupation of the Council situate in the said urban district of New Mills and bounded on the northerly side thereof by lands belonging to the Great Central and Midland Railway Joint Committee on the easterly and southerly sides thereof by a road leading from Mousley Bottom to New Mills and on the westerly side thereof by land belonging to the trustees of Jonathan Jowett deceased and by a farmyard in the occupation of Samuel Swann and David Brunt.

THIRD SCHEDULE.

No. of Loan.	Amount borrowed.	Date of borrowing.	Period authorised for Repayment.	Invested in Sinking Fund.	Balance outstanding on 31st March 1906.
	£ s. d.		Years	£ s. d.	£ s. d.
4	11,000 0 0	Mar. 1893	30		
5	2,550 0 0	£2,000 Mar. /93	30	5,445 7 0	9,554 13 0
6	1,450 0 0	£550 Sep. 1/95	15		
8	100 0 0	Sep. 1/95	50	10 19 8	89 0 4
10	905 0 0	Feb. 8/96	21	328 14 7	576 5 5
13	2,500 0 0	Feb. 3/97	27	204 10 7	2,295 9 5
14	1,300 0 0	Nov. 1/02	22	92 7 0	1,207 13 0
	£19,805 0 0	—	—	£6,081 18 10	£13,723 1 2

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